CITY OF ALAMEDA MEASURE M

M Proposed City Charter Amendment Ballot Measure Shall the measure amending City Charter Sections 2-1.1, 2-3, 2-10, 3-7(G), 3-14, 7-2(J), 8-2, 8-5, 10-3, 10-6, 10-7, 10-12, 12-4(A) and (B), 14-1, 17-10, 28-2, 28-3 and 28-4, and repealing Sections 12-3(D) and 23-3 to conform to existing practices and amend and repeal outdated provisions be adopted?	YES
	NO

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE M

The City of Alameda City Charter is the City's highest level policy and governance document. The Alameda City Council placed this Measure on the November 3 ballot to allow voters to amend numerous sections of the City Charter in order for the Charter language to (i) conform to existing City and City Council practices and (ii) amend and repeal outdated provisions. Sections to be amended include:

Section 2-3 would be amended to clarify and conform with the existing practice that certain high-level City employees, such as department heads or comparable executive-level employees, appointed by the City Manager, City Attorney, or City Clerk shall serve at the pleasure of the appointing authority and do not have civil service protection. Also, the amendment to this Section would permit City Council to create classifications that would provide direct support to elected officials and those appointed would also serve at the pleasure of the elected person/appointing authority and not have civil service protection.

Section 2-10 would be amended to clarify that if there is a vacancy in the office of City Attorney, City Manager, or City Clerk, City Council could designate someone to serve in those offices until it makes a permanent appointment. In addition, prior to a vacancy in the office, incumbents in these offices may designate someone to perform the duties if a vacancy in that office were to occur before City Council makes the interim or permanent replacement appointment. If an unexpected vacancy occurs before Council or the incumbent makes the necessary appointment, the Mayor may make the interim appointment pending City Council action.

Section 8-2 would be amended to make clear that only the City Council may authorize the City Attorney to file litigation on behalf of the City.

Section 10-3 would be amended to provide that one member of the City's Public Utilities Board (which provides oversight of Alameda Municipal Power) must be an electrical, civil, environmental or mechanical engineer, or an engineer with experience in alternative energy.

Section 14-1 would be amended to make clear that the Planning Board's power is to make recommendations concerning land use, subdivisions and zoning.

Section 28-3 would be amended to provide that for the Historical Advisory Board one member shall be a registered architect, one member shall be a State licensed general building contractor and three members shall have an interest in community design.

Other sections remove provisions concerning the responsibilities of the City Auditor, for example deleting the Auditor's review of quarterly budget reports with the Mayor and City Manager (the Finance Director provides this review). Other sections, for example, Section 8-5, makes clear that Council action on certain matters may be by ordinance, resolution or motion.

This Measure is an all or none proposition concerning the 17 sections of the Charter referenced in the ballot question.

If approved by the voters, this Measure would conform the City Charter to existing City and City Council practices and amend and repeal outdated provisions in the Charter.

If the voters do not approve the Measure, all the Charter provisions referenced in this Measure will remain the same.

The Measure will take effect if it is approved by a majority of the voters who vote on the Measure.

s/ YIBIN SHEN
City Attorney

ARGUMENT IN FAVOR OF MEASURE M

Alameda's City Charter is our local constitution. It should be clear, current, and consistent with the way our City government actually operates. Vote YES on this measure to update outdated provisions while preserving public accountability and the basic structure of Alameda government.

Many provisions proposed for amendment were written for another era. The measure removes obsolete dates and transition language, replaces references to agencies that no longer exist, modernizes terminology, and eliminates redundant or inapplicable requirements. These are practical corrections that will make the Charter easier to understand and administer.

The measure also clarifies several important governmental procedures. It allows the City Council, by majority vote, to authorize support staff for elected officials. It establishes workable procedures to maintain continuity when key City offices become vacant. It confirms that decisions to commence, settle, dismiss, or compromise City litigation require Council authorization, rather than leaving those decisions to informal practice.

Other updates modernize qualifications and procedures for City boards. They recognize current fields of engineering and alternative energy on the Public Utilities Board, update Historical Advisory Board qualifications, and remove outdated restrictions that no longer serve a useful purpose. The measure also clarifies financial reporting and auditing responsibilities and conforms Charter language to current City practices.

This measure does not eliminate public meetings or reduce the Council's responsibility to act openly. Instead, it puts existing practices into the Charter, clarifies who is responsible for important decisions, and removes language that is confusing, obsolete, or inconsistent.

Alameda should not be governed by provisions that remain on the books simply because no one has taken the time to update them. This measure is careful housekeeping—not a restructuring of City government.

Vote YES for a clearer, more modern, and more workable City Charter.

s/MARILYN EZZY ASHCRAFT
Mayor, City of Alameda

s/MICHELE PRYOR
Vice Mayor, City of Alameda

s/GREG BOLLER
Councilmember, City of Alameda

s/EVAN SHWARTZ
Resident and Member, Open Government Commission

REBUTTAL TO ARGUMENT IN FAVOR OF MEASURE M

"Measure twice, cut once" is a saying worth raising right now as you, the voter, decide the "simple cleanup of outdated language" ballot measure before you.

Unfortunately, City Council as a whole did not "measure twice, cut once" -- it deliberated over the 21 charter changes before you in only one meeting (July 7, 2026). On that night, two councilmembers noted that the 2025-2026 Charter Reform subcommittee did their ***work*** ***without any*** prior input from the public or the whole Council.

Had there been considerable public input and considerable Council deliberation, the implications of one proposed "cleanup" change would have been better understood: the proposal to remove the word "electors" from Section 10-6 removes citizenship and eligibility-to-vote as requirements to serve on City Hall boards referenced in Sec. 10-6 (i.e. Public Utilities, Planning, Social Services, Library, and Historical Advisory Boards).

To be clear, non-citizens should serve on City Hall boards - they pay taxes and love Alameda. And they should serve especially because of the pressures so many are facing today due to actions in Washington D.C. But this is a conversation City Council as a whole has to have "on the front end", out-loud, with greater public input, as opposed to the way it is presented "on the back end", as an innocuous cleanup measure.

s/TONY DAYSOG
Alameda City Councilmember

ARGUMENT AGAINST MEASURE M

Reject the 21 changes to Alameda's City Charter for these two reasons:

Reason 1: the City Council as a whole and the public had not adequately vetted the proposed changes.

Reason 2: some are not the simple "cleanup of outdated language and provisions" proponents claim.

With respect to Reason 1, City Council as a whole deliberated over the 21 charter changes in only one meeting. On that night, two councilmembers noted that the 2025-2026 Charter Reform subcommittee consisting of Mayor Ashcraft and Vice Mayor Pryor did their work *without any prior* input from the public or the whole Council.

In contrast, a 2019-2020 Charter Reform subcommittee consisting of Councilmember Daysog and Vice Mayor Knox-White obtained extensive input via meetings with the Council as a whole, the local League of Women Voters, the Alameda Citizens Task Force, and the public, prior to forwarding reform measures voters ultimately approved in November 2020 (https://alameda.legistar.comNiew.ashx?M=F&ID=7079150&GUID=879A2277-8834-4315-BEDC-A8837E42640A) (https://alameda.legistar.com/LegislationDetail.aspx?ID=3880482&GUID=30CDB308-8389-4272-A681-60221 B7B6F07 &Options=&Search=).

With respect to Reason 2, removal of the word "electors" from Section 10-6 thereby removes citizenship and eligibility-to-vote as requirements to serve on many City Hall boards. **To be clear, I support non-citizens serving on City Hall boards - they pay. taxes and love Alameda** - but this is a conversation City Council as a whole has to have "on the front end", out-loud, with greater public input, as opposed to the way it is presented "on the back end", as an innocuous cleanup measure.

Another serious change posing as innocuous cleanup: changes to Section 12-4 (B) WRONGLY eliminate the power of the City Auditor to select the certified public accountant that audits Alameda Municipal Power - then WRONGLY gives that selection power to City Council. The City Auditor is elected by and accountable to Alameda voters and, **as required by Charter, is an experienced auditing professional.**

s/TONY DAYSOG
Alameda City Councilmember

REBUTTAL TO ARGUMENT AGAINST MEASURE M

The opposition calls these Charter amendments "unvetted," but every change is printed in the full measure for voters to read. The proposal was developed by a Council subcommittee, published with a staff report and full text, debated at an open Council meeting, and then submitted to Alameda voters. Voters—not the Council—make the final decision.

The opposition identifies two policy choices, but neither is hidden.

First, the measure replaces the requirement that board members be "electors" with a clear requirement that they be Alameda residents and at least 18 years old. This allows adult residents who live, work, pay taxes, and contribute to Alameda to be considered for service whether or not they are registered voters. Existing public appointment procedures remain.

Second, the measure does not eliminate or weaken Alameda Municipal Power's annual audit, rather it codifies current practice; a panel of 5 city staff, including the City Auditor, makes a recommendation to City Council of what 3rd party Auditor to use. This recommendation is done in a public meeting.

Other amendments improve continuity during vacancies, clarify Council authority over City litigation, modernize board qualifications, update obsolete agency references, and repeal transition provisions that expired decades ago.

Reasonable people can debate individual changes. But this measure is transparent, limited, and practical.

Vote YES for a clearer, more workable City Charter.

s/MARILYN EZZY ASHCRAFT
Mayor, City of Alameda

s/MICHELE PRYOR
Vice Mayor, City of Alameda

s/GREG BOLLER
Councilmember, City of Alameda

s/EVAN SHWARTZ
Resident and Member, Open Government Commission

s/JOHN L. LIPP
Resident and Member, Commission on Persons with Disabilities

FULL TEXT OF MEASURE M

CITY OF ALAMEDA CHARTER AMENDMENT

Section 2-1.1 of Article II regarding Officers would be amended as follows: Notwithstanding any other provision of this Charter to the contrary, the matters contained in this Section shall be controlling as to the office of the Mayor. ~~Commencing April 20, 1971, and thereafter, t~~The Mayor shall be an elective officer of the City, and shall hold office for a term of four years and until their successor is elected or appointed and qualified, unless sooner removed from office pursuant to Article XX of this Charter or otherwise. The method of nomination and election of the Mayor shall be as provided in this Charter for the nomination and election of other elective officers of the City. The office of Mayor shall be a separate office and be arranged on a ballot in a separate column and shall be first in order of arrangement. Eligibility for office of Mayor shall consist of the qualifications set forth in this Charter for other elective officers. The provisions of this Charter which provide for the manner of selecting a candidate to fill office in the event of a tie vote shall apply to the office of Mayor. A vacancy in the office of Mayor shall be filled in the manner set forth in Section 2-7 of this Charter. The Mayor shall receive an annual salary not to exceed 30% of the salary for "All Occupations, United States Bureau of Labor Statistics, Occupational Employment and Wage Statistics, San Francisco-Oakland-Hayward Area," payable at the time and in the manner as fixed by Council resolution, and shall be in addition to that provided in Section 6-4. The intent of this section is hereby declared to be only to make the Mayor an elective officer of the City and to provide the compensation therefor, as set forth herein. Except to the extent they are inconsistent with the provisions of this section, other provisions of this Charter relating to the Mayor shall apply to the Mayor provided for by this section.

Section 2-3 of Article II regarding Officers would be amended as follows: (A) The City Council shall establish by a majority vote ~~ordinance~~ offices for the administration of departments of the City and the incumbents thereof shall be appointed by and hold office at the pleasure of the City Manager, City Attorney or City Clerk. Employees appointed pursuant to this section shall serve at the pleasure of their respecting appointing authority and shall not be subject to Civil Service requirements. Once established th~~os~~e offices may be changed, deleted or new ones added by vote of a majority of the Council.

(B) The City Council may also establish by a majority vote classifications that are direct support staff members of elected officials. Such elected official(s) shall be the appointing authority for their assigned support staff member(s). Employees appointed pursuant to this section shall serve at the pleasure of their respecting appointing authority and shall not be subject to Civil Service requirements. Once established the classifications may be changed, deleted or new ones added by vote of a majority of the Council.

Section 2-10 of Article II regarding Officers would be amended as follows: In the event of a vacancy:

(A) I~~i~~n the office of Auditor or~~,~~ Treasurer~~, City Attorney,~~ ~~or City Clerk~~, the Council shall, within sixty ~~twenty-one~~ days thereof, designate someone to perform the duties of the vacant office until such time as a successor may be appointed. Until a successor is appointed, the City Manager shall designate someone to provide for the performance of the duties of the vacant office and is authorized hereby to execute documents required thereof to continue normal operations.

(B) In the office of City Attorney, City Manager or City Clerk, the City Council shall, within sixty days, or as soon as possible if circumstances necessitate additional time beyond sixty days, designate someone to perform the duties of the vacant office until such time as a successor may be appointed. Prior to the absence or vacancy occurring, incumbents of such offices shall designate a qualified employee to act in their absence or vacancy until the Council makes the necessary appointment. In the event of a sudden and unexpected absence or vacancy where no acting appointment is made, the Mayor shall make the acting appointment pending Council action.

Section 3-7(G) of Article III regarding the City Council would be amended as follows: Establish and abolish offices and positions of employment and fix the compensation ~~and duties~~ thereof, except as herein otherwise provided.

Section 3-14 of Article III regarding the City Council would be amended as follows: Before final adoption of an ordinance, its title, a digest thereof, a notice showing the date, time and place of hearing on its final adoption, and notice that three full copies thereof are available for use and examination by the public in the office of the City Clerk, shall be published once in the Official Newspaper of the City at least three days before said hearing date. Notice of the adoption of an emergency ordinance, its title, and a digest thereof shall be similarly published once ~~within three days~~ after its adoption, as soon as possible.

Section 7-2(J) of Article VII regarding the City Manager would be amended as follows: To appoint technical advisory experts ~~or boards with the consent of and~~ at such compensation as may be provided by the Council.

Section 8-2 of Article VIII regarding the City Attorney would be amended as follows: The City Attorney shall have the authority and discretion to prosecute all violations of the ordinances of the City, and all misdemeanor offenses arising out of the laws of the State of California. The City Attorney shall, subject to the general direction of the Council, board or elective officer having jurisdiction of the matter, prosecute and defend for the City, and all boards, officers and employees in their official capacity all proceedings before judicial or quasi-judicial tribunals. The City Attorney shall not compromise, settle or dismiss any action for or against the City without permission of the Council, which may be granted by ordinance, resolution or motion. The City Attorney shall not commence any action on behalf of the City without permission of the Council, which may be granted by ordinance, resolution or motion ~~or written instruction of the City Manager~~. The City Attorney shall be the legal advisor of and attorney and counsel for the City and for all officers and boards thereof, in all matters

relating to their official duties, and whenever requested in writing by any of them, the City Attorney shall give legal advice in writing.

Section 8-5 of Article VIII regarding the City Attorney would be amended as follows: The Council, or any board with the consent of the Council, may empower the City Attorney, at their request, to employ special legal counsel. Such consent may be provided by ordinance, resolution or motion.

Section 10-3 of Article X regarding Boards would be amended as follows: The Public Utilities Board shall consist of five members, one of whom shall be the City Manager, who shall have full power of participating and voting, and one of whom shall be an electrical, civil, environmental or mechanical engineer or engineer with experience in alternative energy. Upon nomination of the Mayor, the Council shall appoint one member of said Board for a term commencing on the first day of July following such appointment and continuing for four years and thereafter until the successor of such member is appointed and qualified.

Section 10-6 of Article X regarding Boards would be amended as follows: All members of such boards shall, at the time of their appointment and continuously during their incumbency, be residents ~~electors~~ of the City and 18 years of age or older.

Section 10-7 of Article X regarding Boards would be amended as follows: Each person appointed to membership of any of said boards shall be particularly qualified to discharge the functions of their office ~~and, to that end: One member of the Public Utilities Board shall be an electrical, civil, mining or mechanical engineer~~.

Section 10-12 of Article X regarding Boards would be amended as follows: No position of employment with any right of compensation attached thereto shall be established under the jurisdiction of any said boards~~, except the Public Utilities Board and the Library Board, except by action of the Council~~.

Section 12-3 (D) of Article XII regarding the Public Utilities Board would be repealed in its entirety as follows: ~~No employee of the Board receiving compensation from it shall be, or within one year preceding their employment have been, a member of the Board.~~ Repealed.

Section 12-4 (A) of Article XII regarding the Public Utilities Board would be amended as follows: Keep fiscal books and records for each utility under its control and management in the manner prescribed by ~~the California Railroad Commission or its successor in authority~~ Board, and all other fiscal records in the manner prescribed by the Auditor.

Section 12-4 (B) of Article XII regarding the Public Utilities Board would be amended as follows: File with the ~~Auditor and~~ Council monthly fiscal reports from the Board, and an annual audit prepared by a Certified Public Accountant selected by the City Council ~~City Auditor~~.

Section 14-1 of Article XVI regarding the City Planning Board would be amended as follows: The City Planning Board shall have such powers and duties as may be delegated by City ordinance. It shall have power to investigate and recommend plans for land use, ~~the future~~ development, ~~improvement and beautification of the City, including landscaping, planting and care of trees on public streets, parks and playgrounds, the improvement and development of harbor facilities, the location and improvement of public buildings and works and the~~ subdivision, and zoning ~~of land~~.

Section 17-10 of Article XVII regarding Finance and Taxation would be amended as follows: The City Manager shall present to the Mayor and City Council a quarterly report on the revenues and expenditures as compared to the adopted budget of all funds of the City. The form of such report shall be both narrative and budgetary in order to inform the Mayor and City Council of the financial status of the City. ~~The Auditor will review each report with the Mayor and City Manager.~~

Section 23-3 of Article XXIII regarding Schedule would be repealed in its entirety as follows: ~~All officers and employees of the City at the time this Charter takes effect shall continue in office for the remainder of their respective terms (if fixed) or until removed as herein provided (if for an indefinite term), subject to all the provisions of this Charter.~~ Repealed.

Section 28-2 of Article XXVIII regarding the Historical Advisory Board would be amended as follows: POWERS AND DUTIES: The purposes, powers, procedures and duties of the Board shall be established by ordinance ~~those set forth in Chapter 9 of Title X of the Alameda Municipal Code~~.

Section 28-3 of Article XXVIII regarding the Historical Advisory Board would be amended as follows: ESTABLISHMENT AND COMPOSITION: There is hereby established an Historical Advisory Board composed of five (5) members, appointed by the Alameda City Council and serving without pay. The members shall be: one registered architect; one State-licensed general building contractor; and three members shall have an interest in community design ~~have demonstrated an interest in the history, heritage and architecture of the City of Alameda and shall be residents of the City~~.

Section 28-4 of Article XXVIII regarding the Historical Advisory Board would be amended as follows: TERMS OF OFFICE: Members shall serve for a term of four (4) years and may be reappointed for a second term of office. Terms shall be staggered so that the number of terms expiring any year shall not differ more than one from the number of terms expiring in any other year. Members shall serve until their successors are appointed. ~~Current members of the Commission shall have their terms decided by lot and their present terms shall not be considered.~~